



CHAPTER xxx.

An Act to empower the London Electric Railway Company to construct new subways and for other purposes. A.D. 1914.
[8th July 1914.]

WHEREAS it is expedient that the London Electric Railway Company (in this Act called "the Company") should be authorised to make and maintain the subways and works in this Act described and to exercise the powers by this Act conferred and to acquire for the purposes of this Act certain lands houses and buildings in this Act described or referred to :

And whereas four million six hundred and twenty-six thousand three hundred and thirty pounds London Electric Railway four per centum preference stock was created by the London Electric Railway Acts 1910 to 1913 of which three million one hundred and seventy-three thousand six hundred and seventy pounds has been raised and issued by the Company leaving unissued one million four hundred and fifty-two thousand six hundred and sixty pounds :

And whereas owing to the state of the money market perpetual preference stocks carrying dividend at the rate of four pounds per centum cannot at the present time be issued on advantageous terms and it is expedient that the Company be enabled to create and issue the said one million four hundred and fifty-two thousand six hundred and sixty pounds of unissued London Electric Railway four per centum preference stock with such higher rate of interest not exceeding five pounds per centum per annum as the Company may think fit instead of at the rate of four pounds per centum per annum :

And whereas it is expedient that the Company be authorised to acquire a site for the erection of general offices ;

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— And whereas it is expedient that other powers should be conferred as in this Act contained:

And whereas plans and sections showing the lines and levels of the subways authorised by this Act and plans of the lands by this Act authorised to be acquired and also a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of London and are hereinafter referred to as the deposited plans sections and book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the London Electric Railway Act 1914 and the London Electric Railway Acts 1893 to 1913 and this Act may all be cited together as "The London Electric Railway Acts 1893 to 1914."

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Works and Lands.

Part III.—Capital.

Part IV.—Miscellaneous.

Incorporation
of Acts.

3. The following Acts and parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say):—

The Lands Clauses Acts:

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the following matters or contained in the following sections thereof (that is to say):—

The construction of the railway and the works connected therewith;

Section 45 (As to lands for additional stations);

The settlement of disputes by arbitration;

Section 138 (As to service of notices);

The recovery of damages not specially provided for
and of penalties and the determination of any other
matters referred to justices; and

The provision to be made for affording access to the
special Act by all parties interested;

The provisions aforesaid with regard to the construction
of the railway and works connected therewith shall
for the purposes of this Act be construed and read
as though “subways” were therein substituted for
“railway”:

The provisions of the Companies Clauses Consolidation Act
1845 with respect to the following matters (that is to
say):—

The distribution of the capital of the Company into
shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforce-
ing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the
shareholders;

The borrowing of money by the Company on mortgage
or bond;

The conversion of the borrowed money into capital;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise
of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the
special Act by all parties interested:

And Part I. (relating to cancellation and surrender of
shares) Part II. (relating to additional capital) and
Part III. (relating to debenture stock) of the Companies
Clauses Act 1863 as amended by any subsequent Act.

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Interpreta-
tion.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

“The subways” means the subways by this Act authorised;

“The Act of 1893” “the Act of 1899” and “the Act of 1902” respectively mean the Charing Cross Euston and Hampstead Railway Acts 1893 1899 and 1902 respectively;

“The Act of 1910” means the London Electric Railway Amalgamation Act 1910;

“The Act of 1911” means the London Electric Railway Act 1911;

“The Act of 1912” means the London Electric Railway Act 1912;

“The Act of 1913” means the London Electric Railway Act 1913;

“The Acts of 1910 to 1913” means the Act of 1910 the Act of 1911 the Act of 1912 and the Act of 1913;

“The Company” means the London Electric Railway Company;

“The District Company” means the Metropolitan District Railway Company;

“The Central Company” means the Central London Railway Company;

“The City Company” means the City and South London Railway Company;

“The unissued London Electric Railway Four per centum Preference Stock” means the said sum of one million four hundred and fifty-two thousand six hundred and sixty pounds London Electric Railway Four per centum Preference Stock created by the London Electric Railway Acts 1910 to 1913 but not yet issued by the Company;

The expression “parish clerks” and “clerks of the several parishes” in sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall as regards the administrative county of London mean the town clerks of the metropolitan boroughs.

PART II.

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WORKS AND LANDS.

5. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the subways and works hereinafter described with all necessary and convenient lifts escalators inclines stairs approaches passages stagings buildings sewers drains pipes wires apparatus plant machinery appliances works and conveniences connected therewith or incidental thereto and may subject as aforesaid enter upon take and use such of the lands delineated on the said plans and described in the deposited book of reference as may be required for those purposes :

Power to
make works.

Provided always that (except for the purpose of making trial borings as provided by the Act of 1893 as incorporated with this Act and except as expressly provided by this Act) nothing in this Act shall authorise the Company to enter upon take or use the surface of any public street or road but (subject as aforesaid) the Company may enter upon take and use the subsoil and under-surface of any public street road footway or place shown on the deposited plans and described in the deposited book of reference or so much thereof as shall be necessary for the purposes of the works by this Act authorised without being required to purchase the same or any easement therein or thereunder.

6. The subways hereinbefore referred to and authorised by this Act will be situate in the county of London and are—

Description
of subways.

A Subway (Subway No. 1) situate partly in the parish of St. Giles-in-the-Fields in the metropolitan borough of Holborn and partly in the parish of St. Anne in the city and metropolitan borough of Westminster commencing in the said parish of St. Giles-in-the-Fields by a junction with the northern end of the station tunnel containing the Company's south-bound platform of their Tottenham Court Road Station at a point underneath Charing Cross Road thirty-five yards or thereabouts measured in a southerly direction from the junction of that road with Oxford Street and fifteen yards or thereabouts measured in a north-easterly direction from the entrance to Falconburg Court from Charing Cross Road and terminating in the said parish of St. Anne by a junction with the subway

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leading from the lifts in the Tottenham Court Road Station of the Central Company to platforms in that station at a point thirteen yards measured in a southerly direction from the north-east corner of that company's station building and twenty-three yards measured in a south-easterly direction from the north-western corner of that company's said station building :

A Subway (No. 2) situate partly in the said parish of St. Anne and partly in the said parish of St. Giles-in-the-Fields commencing in the said parish of St. Anne by a junction with the subway leading from the lifts of the Central Company's Tottenham Court Road Station to that company's platforms at a point six yards or thereabouts measured in a south-westerly direction from the north-east corner of that company's station building and eighteen yards or thereabouts measured in an easterly direction from the north-west corner of that building and terminating in the said parish of St. Giles-in-the-Fields in the booking-hall of the Company's Tottenham Court Road Station at a point forty-five yards or thereabouts measured in an easterly direction from the north-east corner of the Central Company's Tottenham Court Road Station building and thirty-two yards or thereabouts measured in a southerly direction from the centre of the gateway in Tottenham Court Road leading into Meux's Brewery :

A Subway (No. 3) situate wholly in the said parish of St. Anne commencing at a point fifty yards or thereabouts measured in an easterly direction from the north-west corner of the Central Company's Tottenham Court Road Station and thirty-eight yards or thereabouts measured in a south-westerly direction from the centre of the said gateway leading into Meux's Brewery and terminating in the basement under the booking hall of the Central Company's Tottenham Court Road Station at a point twenty yards or thereabouts measured in an easterly direction from the north-western corner of that station building and sixty-four yards or thereabouts measured in a south-westerly direction from the centre of the said gateway leading into Meux's Brewery :

A Subway (No. 4) situate wholly in the parish of St. James Westminster in the said city and metropolitan borough of Westminster commencing under the roadway

of Piccadilly Circus at a point twenty-four yards or thereabouts measured in a south-easterly direction from the north-east corner of Messrs. Swan and Edgar's premises and sixty-four yards or thereabouts measured in a south-westerly direction from the western corner of the London Pavilion and terminating in the Company's Piccadilly Circus station at a point eight yards or thereabouts measured in a northerly direction from the centre of the entrance to that station from Jermyn Street:

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A Subway (No. 5) situate wholly in the parish of St. Martin-in-the-Fields in the said city and metropolitan borough of Westminster commencing by a junction with the subway in the Company's Trafalgar Square Station leading from the south-bound platform to the lifts at a point under the roadway of Charing Cross eighty-six yards or thereabouts measured in a south-westerly direction from the south-west corner of the Charing Cross post office and seventeen yards or thereabouts measured in a north-easterly direction from the top step of the northern stairway leading to the gentlemen's public lavatory in Charing Cross and terminating in the booking hall of the Company's station at a point under Trafalgar Square fifty-one yards or thereabouts measured in a south-westerly direction from the south-west corner of the said post office and fifty-six yards or thereabouts measured in a north-easterly direction from the top step of the said northern stairway leading to the said lavatory.

7. The provisions contained in the sections and parts of sections of the Acts of 1893 1899 1902 and 1913 which are mentioned in the First Schedule to this Act (subject to any amendment or variation by this Act) are incorporated with and form part of this Act and shall so far as applicable extend and apply to the subways and works by this Act authorised the roads under and along which the same are to be made the lands by this Act authorised to be acquired and the several bodies or persons named or referred to in those sections as fully and effectually to all intents and purposes as if those provisions had been expressly re-enacted in this Act with reference thereto respectively.

Incorporating certain provisions of existing Acts.

8. In the execution of the subways and works by this Act authorised the Company may subject to the provisions of this Act deviate vertically from the levels thereof marked on

Power to deviate vertically.

A.D. 1914. the deposited sections to such an extent as may be found necessary or convenient Provided always that it shall not be lawful for the Company to deviate upwards from the levels of Subways Nos. 1 2 4 and 5 as to bring the crown of the subway within ten feet and in the case of Subway No. 3 within eight feet of the surface of any public road or street under which such subways are constructed.

Compensation for damage by working.

9.—(1) In addition to the provisions of the Acts incorporated herewith with respect to compensation for lands taken or injuriously affected the Company shall make compensation to the owner lessee and occupier of any land house or building which shall be injuriously affected by reason of the working of the escalators authorised by this Act where constructed in a subway notwithstanding that no part of the property of such owner lessee or occupier is taken by the Company Provided that all claims for compensation under this section shall be made within two years from the date of the opening of such escalators for public traffic and shall be settled by a single arbitrator under and subject to the provisions of the Arbitration Act 1889 save that where the parties do not concur in the appointment of an arbitrator the Board of Trade shall have the powers of the Court or a judge under section 5 of the said Act Provided also that where any claimant is restricted by any deed or agreement with the Company from claiming compensation for injurious affection by reason of such working this section shall not apply.

(2) An arbitrator under this section may with the consent of all parties concerned hear together any class or group of claims under this section.

Breaking up surface of streets.

10.—(1) Subject to the provisions of this Act the Company may for the purpose of constructing the subways and works by this Act authorised and works and conveniences connected therewith respectively enter upon open break up and interfere with temporarily the surface of the following streets and roads and to the following extent (that is to say):—

Within the limits of deviation of Subway No. 3 Oxford Street between the Central Company's Tottenham Court Road Station and Charing Cross Road:

Within the limits of deviation of Subway No. 5 Charing Cross and Trafalgar Square between King Charles Statue and the entrance in Trafalgar Square to the Company's Station.

(2) Save as aforesaid (and except for the purpose of altering or diverting sewers pipes cables wires and other works) nothing in this Act contained shall empower the Company to break up or interfere with the surface of any street for the purpose of constructing maintaining or using the subways and works by this Act authorised Provided that the Company shall not alter divert or otherwise interfere with the pipes cables wires or other works of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878. A.D. 1914.
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(3) Seven days before entering upon breaking up and interfering with any such streets or roads as aforesaid the Company shall serve notice in writing on the Commissioner of Police of the Metropolis and make such arrangements with him as may be necessary so as to cause as little interference with the traffic as may be reasonably possible.

11. If the subways by this Act authorised be not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the subways or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for
completion
of works.

12. With respect to the properties shown on the deposited plans which are described or referred to in the first part of the Second Schedule to this Act notwithstanding anything contained in this Act or the said plans the Company shall not purchase or take any part of the surface thereof otherwise than by agreement With respect to the properties shown on the deposited plans which are described or referred to in the first or second parts of the said Second Schedule notwithstanding as aforesaid the Company shall not be required to purchase or take the same or any part of the surface thereof the Company may purchase and take and the owners of and other persons interested in any such property shall sell an easement or right of using the subsoil and undersurface thereof for the purposes of the undertaking of the Company and the provisions of the Lands Clauses Acts with respect to lands shall subject to the provisions of this Act extend and apply to such easement or right of user except that no such easement or right of user shall be deemed part of a house or other building or manufactory within the meaning of section 92 of the Lands Clauses Consolidation Act 1845 and that any question of disputed purchase money or compensation under this section shall be settled by arbitration in manner prescribed by the said Acts. Owners may
be required
to grant
easements
only under
certain pro-
perties.

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Owners may
be required
to sell parts
only of cer-
tain lands
and build-
ings.

13. And whereas in the construction of the subways and works hereby authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown on the deposited plans may be sufficient for the purposes of this Act and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 92 of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the properties described in the Third Schedule to this Act and whereof parts only are required for the purposes of this Act may if such portions can in the opinion of the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Company the portions only of the properties so required without the Company being obliged or compellable to purchase the whole or any greater portion thereof the Company paying for the portions required by it and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise.

Power to
Company to
acquire addi-
tional lands.

14. Subject to the provisions of this Act and in addition to the other lands which the Company is authorised to acquire the Company may enter upon take and use and appropriate for the purpose of erecting buildings for general offices for and in connection with the carrying on of its undertaking all or any of the lands hereinafter described and delineated on the deposited plans thereof and described in the deposited book of reference relating thereto (that is to say):—

In the county of London—

Certain lands in the parish of St. Margaret and St. John the Evangelist Westminster in the city and metropolitan borough of Westminster bounded on the north by the Metropolitan District Railway and Broadway on the east by Broadway and on the south and west by St. Ermine's Hill.

For protec-
tion of
Cannon
Brewery
Company
Limited.

15. Notwithstanding anything to the contrary in this Act contained or shown on the deposited plans the Company shall not without the consent of the Cannon Brewery Company Limited (in this section referred to as "the owners") under their common seal purchase or acquire from the owners otherwise than by

agreement any portion of the lands coloured pink blue and brown on the plan which has been signed in duplicate by the Right Honourable Baron Lamington the Chairman of the Committee of the House of Lords to which the Bill for this Act was referred (one copy of which plan has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords) Provided always that nothing in this section contained shall in any way preclude the Company from acquiring from the owners under the provisions of this Act their estate and interest in the land coloured green on the said plan or their rights of access of light and air to the lands coloured pink blue and brown over any lands to the southward or westward thereof or their rights of way or other rights in over or in relation to the lands coloured yellow on the said plan or over Maundy Place and for the purposes of this section the acquisition by the Company of any such rights of access of light and air or other rights as aforesaid shall be deemed compulsory acquisition of lands within the meaning of the Lands Clauses Consolidation Acts.

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16. If and when the Company acquire the lands in the city of Westminster numbered on the deposited plans 1 to 5 and 13 to 16 or any part of such lands and before they stop up Maundy Place under the provisions of the section of this Act of which the marginal note is "Power to stop up street" they shall at their own expense add to so as to increase the present width of the Broadway to the extent shown by red colour on the plan which has been signed in duplicate by Sir Luke White the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred (one copy of which plan has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords) and such lands shall be thereupon deemed to form part of the highway of the street to which the same have been added and shall be paved or made up and thereafter maintained repaired cleansed and lighted by the council of the city of Westminster.

Widening
of Broadway
Westmin-
ster.

17. The Company may stop up the street known as Maundy Place shown on the deposited plans and thereupon all public rights of way over such street shall be extinguished and the site thereof shall vest in the Company but such street shall not be stopped up unless the Company is owner in possession of all houses and lands on both sides thereof.

Power to
stop up
street.

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As to private rights of way over lands taken compulsorily.

18. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Power to Company to enter upon property for survey and valuation.

19. The Company and its surveyors officers contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings by this Act authorised to be taken and used as aforesaid or any of them or any lands houses and buildings which may be affected by the construction of the said subways and works for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Costs of arbitration in certain cases.

20. The tribunal to which any question of disputed purchase-money or compensation under this Act is referred shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving such sufficient particulars and in such sufficient time as aforesaid has been delivered and that the Company has been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant Provided that it shall be lawful for any judge of the high court to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Company if it objects to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer

de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case
 Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

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21. In settling any question of disputed purchase-money or compensation payable under this Act by the Company the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the thirty-first day of October one thousand nine hundred and thirteen if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensation in case of recently altered buildings acquired by Company.

22. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

23. The following provisions shall unless otherwise agreed between the Company and the Postmaster-General have effect in relation to the construction of Subways Nos. 1 2 and 3 by this Act authorised (that is to say):—

For protection of Postmaster-General.

- (1) No timber shall be permanently built outside the line of Subway No. 2 and steel polings shall be used instead of timber for the support of the soil and the said polings shall be built in if necessary and properly grouted with cement:
- (2) Any space between the linings of the said subways and the surrounding soil shall be properly filled up with cement grouting placed therein under pressure:
- (3) The Company shall not in constructing the said subways under or over or within one hundred feet of the centre line of the Railway No. 1 authorised by the Post Office (London) Railway Act 1913 (in this section called "the prescribed distance") deviate from the levels shown on the deposited sections without the consent of the engineer-in-chief of the Post Office which consent shall not be unreasonably withheld

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but nothing in this section shall prevent the Company from deviating downwards from the levels shown on the deposited sections:

- (4) The Company shall twenty-one days before commencing the construction of the said subways within the prescribed distance furnish to the Postmaster-General plans sections and specifications of the works proposed to be carried out by the Company within the prescribed distance and such plans sections and specifications shall be settled and agreed upon between the engineer of the Company and the engineer-in-chief of the Post Office or in case of their failing to agree or of any difference arising between them the same shall be referred to and determined by arbitration as hereinafter provided and such works shall be carried out only in accordance with the plans sections and specifications so agreed upon or determined. The Company shall give to the Postmaster-General twenty-one days' notice (except in cases of emergency) before commencing any works of structural alteration or renewal of the said subways within the prescribed distance with a sufficient description of such works. In case of emergency the Company shall give the Postmaster-General the longest notice which can reasonably be given having regard to the urgency of the works to be executed and such notice shall be accompanied by a sufficient description of the works proposed to be carried out and all works referred to in this sub-section shall be carried out under the supervision (if the same be given) and to the reasonable satisfaction of the engineer-in-chief of the Post Office:
- (5) The Company shall at all times maintain the said subways so far as the same shall be within the prescribed distance in substantial repair and good order and condition and if and whenever the Company fails so to do the Postmaster-General may make and do all such works and things on his own railways and works as may be reasonably requisite for the protection thereof in that behalf and the reasonable amount of his expenditure in that behalf shall be repaid to him by the Company:

- (6) If it shall at any time appear to the engineer-in-chief of the Post Office either before or during the construction or after the completion of the said subways within the prescribed distance that any further or other works or appliances or measures of precaution are required either by way of addition to the railway of the Postmaster-General or in connection with or in relation to the method of construction of the said subways so as to prevent subsidence or injury happening to the said railway the Company shall on being thereunto required in writing under the hand of the engineer-in-chief of the Post Office within the prescribed distance make and carry out at the expense of the Company and according to plans sections and specifications to be reasonably approved by the said engineer-in-chief such works or take such measures or precaution including the use of compressed air or the temporary cessation of the construction of the said subways or the carrying on of the construction of the same without cessation as the said engineer-in-chief shall reasonably require Any difference between the Company and the said engineer-in-chief arising under this sub-section shall unless otherwise agreed be determined by arbitration as hereinafter provided:
- (7) If during the construction of the said subways the railway of the Postmaster-General shall be injured or damaged the Postmaster-General may forthwith make good such injury or damage and execute such protective works as the engineer-in-chief of the Post Office shall reasonably consider necessary for ensuring the safety of the said railway and the expense properly incurred by the Postmaster-General in so doing shall be repaid by the Company to the Postmaster-General:
- (8) Any question by this section referred to arbitration and any difference which may arise between the Company and the engineer of the Company on the one hand and the Postmaster-General and the engineer-in-chief of the Post Office on the other hand as to the reasonableness of any requirement of the Postmaster-General or the said engineer-in-chief or otherwise under the provisions of this section shall unless

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otherwise agreed be referred to and determined by an engineer to be agreed upon between the parties in difference or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of
Metropolitan
District
Railway
Company.

24. The following provisions for the protection of the Metropolitan District Railway Company (hereinafter in this section referred to as "the District Company") shall unless otherwise agreed have effect:—

(1) The Company shall not except with the previous consent of the District Company under their common seal under the powers of this Act enter upon or in any way interfere with the railway or the St. James' Park Station or any other buildings or works of the District Company nor shall they without the like consent of the District Company purchase or acquire any lands or property of the District Company but the Company may purchase and acquire and the District Company shall so far as their interest in the said lands or property extends sell or grant or (on terms to be agreed or failing agreement to be settled by arbitration under the Arbitration Act 1889) lease an easement or right of erecting and of maintaining buildings over so much of the railway lands and other property of the District Company in the parish of St. Margaret and St. John the Evangelist Westminster as is within the limits shown upon the deposited plans The amount to be paid for the purchase of such easement or right shall unless otherwise agreed be ascertained in case of difference in the manner provided in the Lands Clauses Consolidation Act 1845 with respect to the purchase of land otherwise than by agreement and the easement or right so to be taken shall be deemed to be land so far as respects the proceedings for the acquisition thereof and also for the purposes of any arbitration :

(2) Where any building or other work will be constructed over or affecting the railway of the District Company the same shall be constructed according to plans

drawings and specifications to be previously to the commencement of such building or other work submitted to and reasonably approved by the engineer of the District Company or in case of difference between him and the engineer of the Company by an engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers on the application of the District Company and the Company or either of them and the Arbitration Act 1889 shall apply to such arbitration The said building or other work in so far as it will be over the railway of the District Company shall be maintained for all time by the Company to the reasonable satisfaction of the District Company and if and whenever the Company fail so to do the District Company may maintain the same and the sum from time to time incurred in and about such maintenance shall be repaid to the District Company by the Company:

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- (3) The Company shall construct and maintain their buildings and other works which shall be over or affect the railway lands or property of the District Company so as to leave undisturbed at all times the lines of railway and other works connected therewith of the District Company and so as in no way to obstruct impede or interfere either temporarily or permanently with the free and uninterrupted and safe user of the railway of the District Company or with the traffic thereon and if any such obstruction or interference shall be caused or take place the Company shall pay to the District Company full compensation in respect thereof:
- (4) Notwithstanding anything in this Act contained the Company shall be responsible for and make good to the District Company all costs losses damages and expenses which may be occasioned to that company or to their railway lands works or property or to the traffic thereon or otherwise by reason of or during the erection or maintenance or by reason of the failure of the said buildings or any act or omission of the Company or of their contractors or of any of the persons in the employ of the Company or of their

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contractors and the Company will effectually indemnify and hold harmless the District Company from all claims and demands upon or against them during or by reason of such erection or maintenance or failure or such act or omission.

For protection of Central London Railway Company.

25. For the protection of the Central Company the following provisions shall unless otherwise agreed between the Central Company and the Company be observed and have effect (that is to say):—

(1) Notwithstanding anything shown upon the deposited plans and sections or contained in this Act the Company shall not enter upon take use or interfere with either permanently or temporarily the railway property and works of the Central Company without the consent in writing of the Central Company under their common seal:

(2) The Company shall twenty-eight days before they commence the construction of any part of the works by this Act authorised which shall or may pass over under or adjacent to or within a distance of one hundred lineal feet of any part of the railway property and works of the Central Company furnish to the Central Company proper and sufficient plans sections and specifications of the works proposed to be made by the Company over under or adjacent to or within a distance of one hundred lineal feet of any part of the said railway property and works and such plans sections and specifications shall be settled and agreed upon between the respective engineers of the Company and the Central Company or in case of their failing to agree or of any difference arising between them the same shall be referred to arbitration as hereinafter provided and such works shall be carried into effect only in accordance with such agreement or determination and under the superintendence and to the reasonable satisfaction of the engineer of the Central Company and at the costs charges and expenses in all respects of the Company and when commenced shall be proceeded with without cessation:

(3) The Company shall at all times maintain the works by this Act authorised over under or adjacent to the

railway property and works of the Central Company in substantial repair and good order and condition to the reasonable satisfaction in all respects of the engineer of the Central Company and if and whenever the Company fail so to do the Central Company may make and do in and upon as well the lands or property of the Company as their own lands and property all such works and things as the Central Company may reasonably think requisite and the sum from time to time certified by such engineer to be the reasonable amount of their expenditure in that behalf shall be repaid to them by the Company. The engineer of the Central Company and his duly authorised assistants shall at all reasonable times have free access to the works by this Act authorised and every reasonable facility shall be afforded them for the inspection thereof and every reasonable notice which they may give touching any defect or want of repair shall immediately or as soon as possible be complied with by the Company:

- (4) If during and by the execution of the works by this Act authorised the said railway property and works shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their own expense or in the event of their failing so to do the Central Company may make good the same and recover the costs thereof against the Company:
- (5) The Company shall not in making and maintaining working or using the works by this Act authorised in any manner obstruct hinder or interfere with the free uninterrupted and safe user of the Central Company's railway property and works or any part thereof or any traffic thereon or company or person using the same and if at any time or times hereafter the free and uninterrupted and safe user of the Central Company's railway property and works or any part thereof or any traffic thereon or company or person using the same shall be obstructed hindered or interfered with contrary to this enactment the Company shall forfeit and pay to the Central Company for each such obstruction one hundred pounds

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by way of ascertained damages for every hour during which each such obstruction hindrance or interference shall continue and so in proportion for any period of less than one hour:

- (6) All reasonable fees costs charges and expenses in respect of any of the matters in this section contained shall be borne and on demand paid by the Company who during the construction renewal or repair of the works by this Act authorised over under or adjacent to the said railway property and works of the Central Company shall bear and on demand shall pay to the Central Company the reasonable costs charges and expenses of their engineer and assistants and the expense of the employment by the Central Company of a sufficient number of inspectors or watchmen to be appointed by them for watching the said railway property and works with reference to and during the execution of the intended works and for preventing as far as may be all interference obstruction danger or accident from any of the operations of the Company or from the acts or defaults of their contractors or of any person or persons in their employ or otherwise:
- (7) If at any time the engineer of the Central Company shall be of opinion that the construction or maintenance of the works or other operations of the Company are or may be attended with danger to any portion of the said railway property and works the Company shall forthwith adopt such additional measures and precautions as the engineer of the Central Company may consider necessary for the purpose of preventing damage or injury thereto:
- (8) In the event of the Central Company desiring to alter or extend their existing Tottenham Court Road Station the Company shall give to the Central Company every reasonable facility for the execution of such alteration or extension:
- (9) Notwithstanding anything in this Act contained the Company shall be responsible for and make good to the Central Company all costs losses damages charges and expenses which may be occasioned to the Central Company or to any of their works or property or to

the traffic on their railway or otherwise by reason of the construction or failure of the works by this Act authorised and the works in connection therewith or of any act or omission of the Company or of any of the persons in their employ or of their contractors or others and the Company shall effectually indemnify and hold harmless the Central Company from all claims and demands upon or against them by reason of such construction or failure or of any such act or omission: A.D. 1914.

(10) The fact that any work or thing has been done or executed in accordance with any plan not objected to or approved by the Central Company or with any requirement of the Central Company or under the superintendence of their engineer or in accordance with any direction or award of an arbitrator shall not excuse the Company from any liability for damage caused to the said railway property and works of the Central Company or affect any claim by the Central Company in respect of any obstruction or hindrance of or interference with any traffic on or company or person using the railway of the Central Company or demands of any company or person using the same:

(11) Any question by this section referred to arbitration and any difference which may arise between the Company and the Central Company as to the reasonableness of any requirement of that company or of their engineer or otherwise under the provisions of this section shall unless otherwise agreed be determined by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such determination.

26. For the protection of the Metropolitan Water Board (in this section referred to as "the Board") the following provisions shall unless otherwise agreed in writing between the Company and the Board have effect (that is to say):—

For protection of Metropolitan Water Board.

(1) The provisions contained in section 67 "General provisions for protection of water gas hydraulic power and telephonic companies or undertakers under any Electric Lighting Order" of the Act of

A.D. 1914.

1902 as extended and applied by the section of this Act of which the marginal note is "Incorporating certain provisions of existing Acts" to the works by this Act authorised (in this section referred to as "the protective section") shall be read and have effect as if the Board were a protected company within the meaning of that section Provided that the following modifications of the said section in its application to the Board and their apparatus shall have effect (that is to say):—

(A) The period of twenty-eight days shall be substituted for the period of fourteen days mentioned in subsections (1) and (2) of the said section and the period of fourteen days shall be substituted for the period of seven days mentioned in the said subsection (1);

(B) The President of the Institution of Civil Engineers shall be substituted for the Board of Trade in subsection (8) of the said section :

(2) The Company shall not remove raise sink or otherwise alter the position of any mains pipes valves hydrants plugs or other works or apparatus (in this section referred to as "apparatus") of the Board or do anything which may impede the passage of water into or through the same without the consent in writing of the engineer of the Board or in any manner other than the said engineer shall approve (such consent or approval as the case may be not to be unreasonably withheld) and until such good and sufficient apparatus as the said engineer may consider necessary for continuing the supply of water has been first provided and laid down and made ready for use :

(3) The Company in executing any works under this Act or in removing raising sinking or otherwise altering the position of any apparatus of the Board shall make good all damage done by them to the apparatus or other property of the Board and shall make reasonable compensation to the Board for any loss or damage which they may sustain by reason of any interference with their apparatus or property :

(4) In executing the works authorised by this Act the Company shall not raise sink or otherwise alter the position of any apparatus of the Board or alter the level of any street or road in which any such apparatus is situate so as to leave over such apparatus a covering of either less than three feet or of more than five feet: A.D. 1914.

(5) All works to be executed or provided under this section or the protective section in connection with any apparatus of the Board shall be so executed and provided by and at the expense of the Company but to the reasonable satisfaction and under the superintendence of the engineer to the Board and the reasonable costs charges and expenses of such superintendence shall be paid by the Company:

(6) Whenever by reason or in consequence of the stopping up under the powers of this Act of Maundy Place any apparatus of the Board situate therein shall be rendered derelict or unnecessary the Company shall forthwith after such stopping up pay to the Board such a sum as may be agreed between the Board and the Company or as failing such agreement may be determined by arbitration as hereinafter provided to be the value of—

(A) The apparatus situate in and under Maundy Place;

(B) Any apparatus of the Board connected with the property of the Board and used exclusively for the purposes of the supply of water to any premises to which a supply is furnished by means of the apparatus in and under Maundy Place:

(7) In addition to the payment referred to in the last preceding subsection of this section the Company shall pay to the Board their charges of and incidental to the cutting off of any such apparatus as is referred to in the said subsection from any other apparatus of the Board and of and incidental to any other works or things rendered necessary in consequence of any apparatus of the Board being rendered derelict or unnecessary by the stopping up of Maundy Place:

A.D. 1914.

(8) The provisions of this section shall except as otherwise expressly provided be in addition to and not in substitution for or derogation of any other provisions of this Act to the benefit of which the Board would otherwise be entitled:

(9) If any question shall arise under this section between the Company and the Board or their respective engineers or if in any case the engineer of the Board withholds his consent approval or sanction a difference shall thereupon be deemed to have arisen between the Company and the Board with regard thereto then and in every such case such difference shall be settled in accordance with the provisions of subsections (8) and (10) of the protective section as modified by this section.

For protec-
tion of West-
minster
Electric
Supply Cor-
poration
Limited.

27. For the protection of the Westminster Electric Supply Corporation Limited (in this section referred to as "the Westminster Company") the following provisions shall unless otherwise agreed in writing have effect (that is to say):—

(1) When the Company stop up the street known as Maundy Place they shall pay to the Westminster Company such a sum as may be agreed between the Westminster Company and the Company or as failing such agreement may be determined by arbitration as hereinafter provided to be the value of any mains pipes wires or apparatus under the said street belonging to the Westminster Company and thereupon they shall become the property of the Company and the Company shall also pay to the Westminster Company their reasonable charge of removing or altering any of the mains pipes wires or apparatus in immediate communication therewith which the works of the Company shall render useless or which shall require to be altered:

(2) If any difference shall arise between the Company and the Westminster Company under this section the same shall be settled by arbitration by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 shall apply to such arbitration.

28. The following provisions shall unless otherwise agreed have effect for the protection of the London County Council (in this section called "the council") (that is to say) :--

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For protec-
tion of Lon-
don County
Council.

(1) Any building erected by the Company on any lands acquired by them under the section of this Act of which the marginal note is "Power to Company to acquire additional lands" shall not be of a greater height than eighty feet (exclusive of two storeys in the roof and of ornamental towers turrets or other architectural features or decorations) without the consent of the council :

(2) The provisions of the London Building Acts 1894 to 1909 and any Act amending the same and any bye-laws and regulations in force thereunder shall except so far as the same may be expressly varied by this Act apply to the execution by the Company under the powers of this Act of any works in the Administrative County of London and to any new buildings or additions to or alterations of existing buildings erected or made under the powers of this Act and the Company shall save as aforesaid be entitled to the benefit of any special exemptions in favour of railway companies in the said London Building Acts contained but no such exemptions shall be deemed to apply to such part of any building which shall be used or intended to be used for other than railway purposes :

(3) (A) Before commencing to construct any part of Subways Nos. 3 and 4 by this Act authorised (in this sub-section referred to as "the said subways") which shall or may pass under or within one hundred feet of any pipe subway of the council (hereinafter referred to as "the pipe subway") the Company shall deliver to the council plans sections and specifications of the works as proposed to be executed by the Company within such distance of one hundred feet of the pipe subway and if at the expiration of twenty-eight days from such delivery the plans sections and specifications shall not be approved by the council there shall be deemed to be a difference and such difference shall unless otherwise agreed be settled in the manner hereinafter provided and the said subways shall be

A.D. 1914.

executed to the reasonable satisfaction of the council and when commenced shall so far as practicable be proceeded with without cessation ;

- (B) The Company shall at all times maintain the said subways under or within one hundred feet of any part of the pipe subway in substantial repair and good order and condition to the reasonable satisfaction in all respects of the council and if and whenever the Company fail so to do the council may make and do in and upon as well the works and lands of the Company as their own lands and works all such works and things as the council may reasonably think requisite and the sum from time to time certified by the council to be the reasonable amount of the council's expenditure in that behalf shall be repaid to the council by the Company The council shall at all reasonable times have free access to the works of the Company where the said subways shall pass under or within one hundred feet of the pipe subway and for the distance above mentioned and every reasonable facility shall be afforded them for the inspection thereof and every reasonable notice which they may give touching any defect or want of repair shall immediately or as soon as possible be complied with by the Company ;
- (c) If during and by the execution of the said part of the said subways any part of the pipe subway shall be injured or damaged such injury or damage shall forthwith be made good by the Company or in the event of their failing so to do the council may make good the same and recover the costs thereof against the Company ;
- (D) All reasonable fees costs charges and expenses in respect of any of the matters in this subsection contained shall be borne and on demand paid by the Company and during the construction renewal or repair of the said subways under and adjacent to the pipe subway the Company shall bear and on demand shall pay to the council the expense of the employment by them of a sufficient number of inspectors or watchmen to be appointed by them for watching the pipe subway or any part thereof and for pre-

venting as far as may be all interference obstruction danger and accident arising from any of the operations of the Company or from acts or defaults of the contractors of the Company or of any person in their employ or otherwise;

- (E) The Company shall be responsible for and make good to the council all costs losses damages and expenses which may be occasioned to the council or to the pipe subway or to any person using the same or otherwise by reason of the construction maintenance or failure of the said subways or of any act or omission of the Company or of any person in their employ or of their contractors or others and the Company shall effectually indemnify and hold harmless the council from all claims and demands upon or against them by reason of such construction maintenance or failure and of any such act or omission:
- (4) The Company shall not without the consent of the council construct under any street or roadway any part of the subways or works by this Act authorised which will be within twenty-five feet of the surface of such street or roadway except in accordance with plans and sections submitted to and approved by the council and such approval shall not be unreasonably withheld:
- (5) So soon as reasonably practicable after the completion of any underground works which have been executed by them under the powers of this Act the Company shall at their own expense furnish the council with a copy of any map or plan made by them of such works with any corrections alterations or additions:
- (6) Any difference arising between the council and the Company under this section (except sub-sections (1) and (2) thereof) shall unless otherwise agreed be referred to and determined by an engineer to be agreed or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the Arbitration Act 1889 shall apply to any such arbitration.

29. With reference to so much of the subways and works by this Act authorised as will be situate in or under that part

For protec-
tion of St.
Marylebone

A.D. 1914.
Borough
Council.

of Oxford Street which is repairable by the mayor aldermen and councillors of the metropolitan borough of St. Marylebone (hereinafter called "the council") the following provisions for the protection of the council shall unless otherwise agreed apply and have effect :—

- (1) Except as in this section provided the Company shall not break up or disturb the surface of any street or road for the purpose of constructing the subways nor open or make any ventilators air shafts or any similar openings in any roadway or footway but nothing herein contained shall restrict the right of the Company to the use of the streets or roads for purposes of ordinary traffic or of access to in connection with any of their lands or buildings or take away or diminish any rights which they would have as owners or occupiers of lands or buildings abutting upon any street or road Provided always that subject to the provisions of this Act the Company for the purpose of constructing and maintaining the subways and works may enter upon and open up the surface of the roadway or footways of Oxford Street within the limits of deviation of Subway No. 3 Provided that the Company shall not under the powers of this Act enter upon or open up any part of the surface of any street except upon such conditions as the council may reasonably impose and under the control and supervision of the engineer of the council and the Company shall give to the council not less than twenty-one days' previous notice in writing of their intention to enter upon and open up the surface of any such street:
- (2) In the construction of the Subway No. 3 authorised by this Act the Company shall not deviate upwards from the levels shown on the deposited sections without the consent in writing of the council or their engineer which shall not be unreasonably withheld:
- (3) The Company shall not deposit any subsoil or materials anywhere within the metropolitan borough of St. Marylebone (in this section referred to as "the borough") so as to cause any nuisance or obstruction to any person using the roads or footways within the borough:

- (4) It shall not be lawful for the Company to remove any soil or material under any roads within the borough except such as must be excavated from the space to be occupied by the subways and works connected therewith :
- (5) Where any part of any road or footway in the borough shall have been broken up or disturbed by the Company the Company shall make good the surface of such road or footway to the reasonable satisfaction of the engineer of the council :
- (6) The subways and other works shall be constructed and maintained by the Company in such manner as at all times to support not only the ordinary traffic and any other exceptional traffic lawfully using the streets but also any steam roller or other apparatus that the council or its contractors for the time being may use for repairing the streets or roadways under its control and the Company shall indemnify the council against and make good to it all costs and expenses that the council may incur or be put to by reason of any defect or insufficiency in strength of the subways or works or any neglect to properly and effectually maintain the same as aforesaid or in the construction or user of the subways or works :
- (7) The Company shall make full compensation to the council for any subsidence of or damage to any road or footway sewer drain or other work repairable by vested in or under the jurisdiction or control of the council which may be caused by or in consequence of the exercise of any of the powers of this Act or of the act or default of the Company their contractors servants or agents and whether such damage or subsidence shall happen during the construction of the subways and works by the Company or at any time thereafter :
- (8) It shall not be lawful for the Company to place any hoarding in any part of any public road or footway except in such position and of such extent as shall be agreed with the engineer of the council or failing agreement determined by arbitration and for such periods as shall be reasonably necessary for carrying out the works by this Act authorised and no such

A.D. 1914.

hoarding shall be erected except under the provisions of the Metropolis Management Act 1855 and the London Building Act 1894 and any Act or Acts amending the same:

- (9) It shall be lawful for the engineer of the council from time to time during the construction of the subways and works to enter upon and inspect the same and if he shall be of opinion that the construction of the works or other operations of the Company within the borough are attended with danger to any sewer drain or work belonging to or under the jurisdiction or control of the council the Company shall adopt such measures and precautions as may be considered necessary by the engineer of the council for the purpose of preventing any damage or injury thereto:
- (10) If any difference shall arise between the council or their engineer and the Company under any of the provisions of this section such difference shall be referred to an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of Westminster City Council.

30. With reference to so much of the subways and works by this Act authorised as will be situate in the city of Westminster (in this section called "the city") the following provisions for the protection of the council of the city (in this section called "the city council") shall unless otherwise agreed apply and have effect:—

- (1) Except as in this section provided the Company shall not break up or disturb the surface of any street or road for the purpose of constructing the subways nor open or make any ventilators air-shafts or any similar openings in any roadway or footway but nothing herein contained shall restrict the right of the Company to the use of the streets or roads for purposes of ordinary traffic or of access to or in connection with any of their lands or buildings or take away or diminish any rights which they would have as owners or occupiers of lands or buildings abutting upon any street or road Provided always

that subject to the provisions of this Act the Company for the purpose of constructing and maintaining the subways and works may enter upon and open up the surface of the roadway and footway of Oxford Street and Charing Cross Road within the limits of deviation of Subway No. 3 and of Charing Cross and Trafalgar Square within the limits of deviation of Subway No. 5 Provided that the Company shall not under the powers of this Act enter upon or open up any part of the surface of any street except upon such conditions as the city council may reasonably impose and under the control and supervision of the engineer of the city council and the Company shall give to the city council not less than twenty-one days' previous notice in writing of their intention to enter upon and open up the surface of any such street:

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- (2) At least seven clear days before commencing any vertical borings from the surface of any part of any street in the city the Company shall serve notice in writing on the city council of their intention to commence the same and such notice shall describe the place or places at which such borings are intended to be made and if within seven days after the service of such notice any objection is made by the city council the matter shall unless otherwise agreed between them be determined by arbitration before the boring is commenced:
- (3) The Company shall not deposit any subsoil or materials anywhere within the city so as to cause any nuisance or obstruction to any person using the road or footways within the city:
- (4) It shall not be lawful for the Company to remove any soil or material from under any roads within the city except such as must be excavated from the space to be occupied by the subways and works connected therewith:
- (5) Where any part of any road or footway in the city shall have been broken up or disturbed by the Company the Company shall make good the surface of such road or footway to the reasonable satisfaction of the city council:

A.D. 1914.

- (6) The subways and other works in the city shall be constructed and maintained by the Company in such manner as at all times to support not only the ordinary traffic and any other exceptional traffic lawfully using the streets within the city but also any steam roller or other apparatus that the city council or its contractors for the time being may use for repairing the streets or roadways under its control and the Company shall indemnify the city council against and make good to it all costs and expenses that the city council may incur or be put to by reason of any defect or insufficiency in strength of the subways or works or any neglect to properly and effectually maintain the same as aforesaid or in the construction or user of the subways or works:
- (7) The Company shall make full compensation to the city council for any subsidence of or damage to any road or footway sewer drain or other work vested in or under the jurisdiction or control of the city council which may be caused by or in consequence of the act or default of the Company their contractors servants or agents and whether such damage or subsidence shall happen during the construction of the subways and works by the Company or at any time thereafter:
- (8) It shall not be lawful for the Company to place any hoarding in any part of any public road or footway in the city except in such position and of such extent as shall be agreed with the city council or failing agreement determined by arbitration and for such periods as shall be reasonably necessary for carrying out the works by this Act authorised and no such hoarding shall be erected except under the provisions of the Metropolis Management Act 1855 and the London Building Act 1894 and any Act or Acts amending the same:
- (9) It shall be lawful for the engineer or other duly authorised officer of the city council from time to time during the construction of the subways and works to enter upon and inspect the same and if he shall be of opinion that the construction of the

works or other operations of the Company within the city are attended with danger to any sewer drain or work belonging to or under the jurisdiction or control of the city council the Company shall adopt such measures and precautions as may be considered necessary by the engineer of the city council for the purpose of preventing any damage or injury thereto: A.D. 1914.

- (10) If any difference shall arise between the city council or their engineer and the Company under any of the provisions of this section such differences shall be referred to an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

31. With reference to so much of the subways and works by this Act authorised as will be situate in the metropolitan borough of Holborn (in this section referred to as "the borough") the following provisions for the protection of the mayor aldermen and councillors of the metropolitan borough of Holborn (in this section referred to as "the council") shall unless otherwise agreed apply and have effect:— For protection of
Holborn
Borough
Council.

- (1) The Company shall not deposit any subsoil or materials anywhere within the borough so as to cause any nuisance or obstruction to any person using the roads or footways within the borough:
- (2) It shall not be lawful for the Company to remove any soil or material under any roads within the borough except such as must be excavated from the space to be occupied by the subways and works connected therewith:
- (3) Where any part of any road or footway in the borough shall have been broken up or disturbed by the Company the Company shall make good the surface of such road or footway and the foundations thereof to the reasonable satisfaction of the borough surveyor of the council:
- (4) The subways and other works in the borough shall be constructed and maintained by the Company in such manner as at all times to support not only the

A.D. 1914.

ordinary traffic and any other exceptional traffic lawfully using the streets within the borough but also any steam roller or other apparatus that the council or its contractors for the time being may use for repairing the streets or roadways under its control and the Company shall indemnify the council against and make good to it all costs and expenses that the council may incur or be put to by reason of any defect or insufficiency in strength of the subways or works or any neglect to properly and effectually maintain the same as aforesaid or in the construction or user of the subways or works:

- (5) The Company shall make full compensation to the council for any subsidence of or damage to any road or footway sewer drain or other work vested in or under the jurisdiction or control of the council which may be caused by or in consequence of the act or default of the Company their contractors servants or agents and whether such damage or subsidence shall happen during the construction of the subways and works by the Company or at any time thereafter:
- (6) It shall not be lawful for the Company to place any hoarding in any part of any public road or footway in the borough except in such position and of such extent as shall be agreed with the borough surveyor of the council or failing agreement determined by arbitration and for such periods as shall be reasonably necessary for carrying out the works by this Act authorised and no such hoarding shall be erected except under the provisions of the Metropolis Management Act 1855 and the London Building Act 1894 and any Act or Acts amending the same:
- (7) It shall be lawful for the borough surveyor of the council from time to time during the construction of the subways and works to enter upon and inspect the same and if he shall be of opinion that the construction of the works or other operations of the Company within the borough are attended with danger to any sewer drain or work belonging to or under the jurisdiction or control of the council the Company shall adopt such measures and precautions

as may be considered necessary by the borough surveyor of the council for the purpose of preventing any damage or injury thereto: A.D. 1914.

- (8) The Company shall not take any part of or interfere with the existing sanitary convenience belonging to the council or alter the levels of any pavements:
- (9) If any difference shall arise between the council or their borough surveyor and the Company under any of the provisions of this section such difference shall be referred to an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

PART III.

CAPITAL.

32. The capital of the Company shall by virtue of this Act and without any further or other authority be increased by the creation of a further two hundred thousand pounds of preference stock. Power to raise additional capital.

33. The Company may by virtue of this Act and without any further or other authority issue the whole or any part of the further two hundred thousand pounds of preference stock created by this Act as preference stock carrying a fixed preferential dividend at the same rate (namely four per centum per annum) as that carried by the London Electric Railway Four per centum Preference Stock created by the Acts 1910 to 1913 and any preference stock so issued shall as and when issued also be called and known as "London Electric Railway Four per centum Preference Stock." Power to issue additional capital as four per centum preference stock.

34. Notwithstanding anything contained in the Acts of 1910 to 1913 and in this Act the Company may from time to time if it thinks fit (but only with the sanction of a resolution of a general meeting of the Company) issue the whole or any part of the further two hundred thousand pounds of preference stock created by this Act and of the unissued London Electric Railway Four per centum Preference Stock with a fixed preferential dividend at such rate exceeding four per centum per annum but not exceeding five per centum per annum on the nominal value Power to issue additional and unissued preference stock carrying a higher rate of dividend than four per centum.

A.D. 1914. — thereof as it thinks fit and any preference stock so issued shall as and when issued be called and known as “London Electric Railway per centum Preference Stock” according to the rate of dividend attached thereto pursuant to this Act. The notice convening any general meeting for passing any such resolution as is in this section referred to shall set out the resolution proposed to be submitted pursuant to this section to such meeting.

All preference stock to rank *pari passu*.

35. All preference stock shall (whatsoever may be the rate or rates of dividend attached to the same or to different parts thereof and whether the same has been issued prior to the passing of this Act under the powers of the Acts of 1910 to 1913 or any of them or shall be issued after the passing of this Act under the powers of the Acts of 1910 to 1913 and of this Act or any of them) rank for all purposes *pari passu* and shall subject to the provisions of section 122 of the Companies Clauses Consolidation Act 1845 be entitled *pari passu* and rateably according to the respective rates of dividend attached thereto respectively to receive out of the profits of the Company which remain in each half-year ending on a thirtieth day of June or thirty-first day of December a fixed preferential dividend at the rate or respective rates on the nominal value thereof attached thereto respectively by or pursuant to the Acts of 1910 to 1913 or this Act as the case may be.

Application of sections 14 and 16 of Act of 1910.

36. Section 14 (the marginal note of which is “Four per centum preference stock how transferable”) and section 16 (the marginal note of which is “General meetings and right of voting”) of the Act of 1910 shall extend and apply to all preference stock created by or issued under this Act whatsoever may be the rate or rates of dividend attached to the same or the different parts thereof respectively in the same manner in all respects as if all such stock were London Electric Railway Four per centum Preference Stock.

Power to borrow.

37.—(1) The Company may for the purposes of its undertaking borrow on mortgage of the undertaking any sums not exceeding in the whole two hundred thousand pounds by mortgaging or by the creation and issue of debenture stock carrying interest at the rate of four per centum per annum and such borrowing powers shall not nor shall any borrowing powers heretofore conferred on the Company be subject to reduction owing to the Company having prior to the passing of this Act

purchased lands in consideration of rentcharges or having paid or paying under the provisions of this or any previous Act interest out of capital during construction Such debenture stock shall be known as "London Electric Railway Four per centum Debenture Stock" and shall with the interest thereon be entitled to the like charge as and rank *pari passu* in all respects with the "London Electric Railway Four per centum Debenture Stock" constituted or created or which the Company are authorised to create and issue by or under the provisions of the Acts 1910 to 1913 or any of them and such debenture stock shall be subject to the provisions of section 17 (the marginal note of which is "As to debenture stock of Company") of the Act of 1910 and such provisions shall apply thereto as fully as if the same were repeated in this Act with respect thereto and notice of subsection (5) of the said section shall be endorsed on all mortgages and certificates of "London Electric Railway Four per centum Debenture Stock."

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(2) The directors of the Company may from time to time by virtue of this Act and without further or other sanction or authority exercise the powers conferred by this section but nothing in this section contained shall be deemed to limit the powers of the directors to exercise on behalf of the Company the powers conferred by any other section of this Act.

38. Section 44 (the marginal note of which is "For appointment of a receiver") of the Act of 1913 is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under such provision The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

For appointment of a receiver.

39. The principal moneys secured by all mortgages granted by the Company before the passing of this Act in pursuance of the powers of any former Act of Parliament and subsisting at the passing hereof shall during the continuance of any such mortgages have priority over the principal moneys secured by any mortgages granted by virtue of this Act.

Existing mortgages to have priority.

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Receipt in
case of per-
son not sui
juris.

40. If any money is payable to a stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Application
of moneys.

41. All moneys raised under the Acts of 1910 to 1913 and this Act or any of them whether by preference stock or debenture stock or borrowing shall be applied only to purposes of the undertaking of the Company being purposes to which capital is properly applicable.

As to dis-
posal of pre-
ference
stock.

42. Notwithstanding anything contained in Part II. of the Companies Clauses Act 1863 the Company may dispose at such times to such persons on such terms and conditions and in such manner as the directors think advantageous to the Company of any portion of the preference stock created by this Act and of the preference stock created by the Acts 1910 to 1913 whether the same shall be issued under those respective Acts or under this Act.

Calls.

43. One-fifth of the amount of any portion of preference stock created by this Act or created by the Acts 1910 to 1913 and issued under this Act shall be the greatest amount of a call in respect of such portion of stock and two months at least shall be the interval between successive calls and four-fifths of the amount of any portion of such stock shall be the utmost aggregate amount of the calls made in any year upon such portion of stock.

Power to
issue stock
warrants and
debenture
stock certi-
ficates to
bearer.

44.—(1) The Company may with respect to the whole or any portion of preference stock created by this Act or created by the Acts 1910 to 1913 and issued under this Act and which is fully paid up and with respect to any portion of fully paid up debenture stock authorised by this Act and in each case subject to such regulations as may from time to time be made by the Company issue under its common seal warrants and certificates (hereinafter severally referred to as a "stock warrant to bearer" and a "debenture stock certificate to bearer") stating that the bearer of the warrant or certificate is entitled to the preference stock or debenture stock as the case may be therein specified and may provide by coupons whether attached to the warrant or certificate or not for the payment of interest or dividends as the case may be on the preference stock or debenture stock included in the warrant or certificate.

(2) Sections 39 to 52 (inclusive) of the Act of 1910 shall extend and apply to stock warrants to bearer and debenture stock certificates to bearer issued under this Act as if the same had been re-enacted in this Act in reference thereto. A.D. 1914.

45. Notwithstanding anything in this Act or in any Act or Acts incorporated herewith the Company may out of any money by the London Electric Railway Acts 1893 to 1913 and this Act or any of such Acts authorised to be raised pay interest at such rate not exceeding five pounds per centum per annum as the directors may determine to any stockholder on the amount from time to time paid up on the preference stock created by this Act or created by the Acts of 1910 to 1913 and issued under those Acts or under this Act (as the case may be) held by him from the respective times of such payments until the expiration of the time limited by this Act for the completion of the works by this Act authorised or such less period as the directors may determine but subject always to the conditions hereinafter stated (that is to say):—

Power to
pay interest
out of capi-
tal during
construction.

- (A) No such interest shall begin to accrue on any of the preference stock aforesaid which shall from time to time be issued by the Company until the Company shall have deposited with the Board of Trade a statutory declaration by two of the Directors and the secretary of the Company that two-thirds at least of the preference stock so issued in respect of which such interest is proposed to be paid has been actually issued and accepted and is held by stockholders who or whose executors administrators or assigns are legally liable for the same:
- (B) No such interest shall accrue in favour of any holder of such preference stock as aforesaid for any time during which any call on any of his said preference stock is in arrear:
- (c) The aggregate amount to be so paid for interest shall not exceed one hundred and fifty thousand pounds:
- (D) Notice that the Company has power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company

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inviting subscriptions for such preference stock as aforesaid :

- (E) The annual accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

Save as hereinbefore set forth no interest shall be paid out of any stock or share or loan capital which the Company is by this or any other Act authorised to raise to any stockholder or shareholder on the amount of the calls made in respect of the preference stock held by him but nothing in this Act shall prevent the Company from paying to any holder of preference stock such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Repeal of
section 51 of
Act of 1913.

46. Section 51 (the marginal note of which is "Power to pay interest out of capital during construction") of the Act of 1913 is hereby repealed but such repeal shall not prejudice or affect anything which shall have been done in pursuance of such section prior to the passing of this Act.

Interest on
debenture
stock.

47. The Company may charge to capital account the interest accruing during the period of construction limited by this Act for the construction of the subways and works by this Act authorised on all money raised by borrowing or by the issue of debenture stock for the purpose of providing for the construction or equipment of such subways and works.

PART IV.

MISCELLANEOUS.

Agreements
as to erec-
tion &c. of
offices.

48. The Company on the one hand and the District Company the City Company and the Central Company or any of them on the other hand may enter into and carry into effect vary and rescind agreements with reference to the acquisition of land and easements for and the construction equipment maintenance ventilation occupation and user of subways passages escalators sub-stations offices and buildings and with regard to the provision maintenance and user of electric cables ducts and hangers and easements therefor and otherwise for and in connection with carrying on the respective undertakings of the Company and the said companies or any of them and the

supply and transforming of electric energy by the Company and the District Company or either of them to and for the City Company and the Central Company or either of them and any agreement under this section may provide for any capital or annual or other payments under such agreement relating to any of the matters aforesaid. A.D. 1914.

49. The Company may acquire by agreement and hold for the purposes of their undertaking any interest less than the fee simple in any lands or any interest in any easement under any lands which it is authorised to acquire under the powers of this Act. Power to acquire leasehold interests and use lands held on lease.

50. Section 13 (the marginal note of which is "As to buildings upon lands of Company") of the Great Northern Piccadilly and Brompton Railway (Various Powers) Act 1903 and section 25 (the marginal note of which is "As to means of access to station buildings") of the Great Northern Piccadilly and Brompton Railway Act 1908 shall apply to any lands which may be acquired under the provisions of this Act for the purposes of the subways and works in connection therewith by this Act authorised and to any buildings now or hereafter erected on or over or adjoining to any of such lands and to any means of access to any such buildings. As to buildings upon lands of Company.

51. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any land or hereditaments (including the subsoil and undersurface of any street road or footway) or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods without the consent in writing of the Commissioners of Woods on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners are hereby authorised to give). Crown rights.

52. Nothing contained in this Act shall authorise the Company— For protection of Commissioners of Works.

- (1) To enter upon take use or in any manner interfere with any land soil roads streets subsoil tenements or hereditaments or any rights of whatsoever nature belonging to or enjoyed or exerciseable by the King's

A.D. 1914.

most Excellent Majesty in right of His Crown and under the management or control or direction of the Commissioners of Works; or

- (2) To enter upon take use or in any manner interfere with any land soil roads streets subsoil tenements or hereditaments vested for any estate or interest in or in the occupation of or any right of whatsoever nature belonging to or enjoyed or exerciseable by the Commissioners of Works under or by virtue of the provisions of any Act of Parliament or otherwise;

without the consent in writing of the Commissioners on behalf of His Majesty or otherwise first had and obtained for that purpose which consent for all the purposes of this section the Commissioners are hereby authorised to give under and subject to such conditions as they may think fit to prescribe.

Power to apply corporate funds to purposes of Act.

53. The Company may apply to the purposes of this Act or to the general purposes of its undertaking being in all cases purposes to which capital is properly applicable any of the moneys which it now has in its hands or which it has power to raise by shares stocks or debenture stock or borrowing by virtue of the Acts 1910 to 1913 or this Act and which may not be required for the purposes to which they are by the London Electric Railway Acts 1893 to 1913 or this Act made specially applicable.

Power to District Company City Company and Central Company to apply funds.

54. The District Company the City Company and the Central Company respectively may apply to any of the purposes of this Act in which they are interested and to which capital is properly applicable any moneys which they now have in their hands or which they may be authorised to raise by any of the Acts relating to the said companies respectively and which may not be required for the purposes to which they are by those Acts or any of them made specially applicable.

Deposits for future Bills not to be paid out of capital.

55. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any Standing Order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Provision as to general Railway Acts.

56. Nothing in this Act contained shall exempt the Company or its railways from the provisions of any general Act

[4 & 5 GEO. 5.] *London Electric Railway Act*, 1914. [Ch. xxx.]

relating to railways or the better and more impartial audit of A.D. 1914.
the accounts of railway companies passed before or after the
commencement of this Act.

57. All costs charges and expenses of and incident to the Costs of
preparing and applying for and the obtaining and passing of Act.
this Act or otherwise in relation thereto shall be paid by the
Company.

A.D. 1914. The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

SECTIONS AND PROVISIONS OF THE ACTS OF 1893 1899 1902 AND
1913 WHICH ARE INCORPORATED WITH THIS ACT.

Marginal Note of Section.	Number of Section.
ACT OF 1893.	
Persons authorised to convey lands may grant easements - -	33
Power to sell &c. lands - - - - -	34
Power to deviate laterally - - - - -	35
No ventilators &c. to be made in roadways or footways - -	39
Provision as to cellars under streets not referenced - -	40
Conditions to be observed in opening road for boring purposes -	41
As to carting materials and soil - - - - -	42
For the protection of sewers of the council - - - - -	44
Inspection of works by council - - - - -	46
Walls of buildings to be made good - - - - -	47
Exhibition of placards in the county of London - - - - -	50
For the protection of the sewers of district boards and vestries -	51
For protection of the Gas Light and Coke Company - - - -	59
Company empowered to underpin or otherwise strengthen houses near railway - - - - -	73
Agreements with council and local authorities - - - - -	89
ACT OF 1899.	
Special provisions as to use of electrical power - - - - -	7
ACT OF 1902.	
As to powers of Board of Trade in respect of use of mechanical power - - - - -	9
Plans &c. to be approved by Board of Trade before works commenced - - - - -	10
As to unsightly hoardings - - - - -	19
Buildings not to be brought beyond general line &c. - - -	20
Objects of interest to be at disposal of London County Council -	21
Amending sections 50 and 51 of Act of 1893 - - - - -	33
General provisions for protection of water gas hydraulic power and telephonic companies or undertakers under any Electric Lighting Order - - - - -	67
For protection of Postmaster-General - - - - -	76
ACT OF 1913.	
For protection of London County Council - - - - -	34 subsection(1)

SECOND SCHEDULE.

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PART 1.

DESCRIBING PROPERTIES UNDER WHICH EASEMENTS ONLY ARE
TO BE TAKEN.

Where situate.	Nos. on deposited Plans.
Parish of St. Giles-in-the-Fields in the metropolitan borough of Holborn in the county of London.	Subways Nos. 1 and 2 1 and 2.
Parish of St. Anne in the city and metropolitan borough of Westminster in the county of London.	Subways Nos. 1 and 2 1 2 3 4 5 and 6. Subway No. 3 1 and 2.
Parish of St. James in the city and metropolitan borough of Westminster in the county of London.	Subway No. 4 1 2 3 and 5.
Parish of St. Martin-in-the-Fields in the city and metropolitan borough of Westminster in the county of London.	Subway No. 5 1 and 2.

PART 2.

DESCRIBING PROPERTIES UNDER WHICH EASEMENTS MAY BE
TAKEN.

Where situate.	No. on deposited Plans.
Parish of St. James in the city and metropolitan borough of Westminster in the county of London.	Subway No. 4 4.

THIRD SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PARTS ONLY MAY BE TAKEN.

Where situate.	No. on deposited Plans.
Parish of St. James in the city and metropolitan borough of Westminster in the county of London.	Subway No. 4 4.

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